

Sanjay Gupta & Ors vs The State Of Bihar & Anr on 16 July, 2010

IN THE HIGH COURT OF JUDICATURE AT PATNA
Cr.Misc. No.24671 of 2008

1. Sanjay Gupta, son of Sri Prem Chand Agarwal, resident of 3/2, Payare Mohan Mukherjee Street, Post Belur Math, Howrah, Kolkata.
2. Prem Chand Agarwal, son of Late Radha Chand Agarwal,
3. Uma Agarwal, wife of Sri Prem Chand Agarwal,
4. Shekhar Gupta, son of Sri Prem Chand Agarwal,
5. Smt. Lata Gupta, wife of Shekhar Gupta, All residents of 35/2, Payare Mohan Mukherjee Street, Post Belur Math, Howrah, Kolkata - Petitioners.

Vs.

- 1) The State of Bihar,
- 2) Smt. Manjusha Gupta, wife of Sanjay Gupta, daughter of Birendra Kumar Jain, Mahajan Toli No. 2, PS Ara Town, Dist. Bhojpur - Opp. parties.

13 16.7.2010

This application was originally filed for quashing of Complaint Case No. 923©/1997 by Manjusha Gupta, opposite party no.2 alleging that her husband and others were demanding dowry and had thrown her out of their house. On 9.7.2008 notice was issued to the parties and finally both the parties appeared in chambers for settlement of the dispute between them.

Manjusha Gupta married Sanjay Gupta on 12.12.1996. They lived together till October, 2004 as husband and wife at Kolkata. However, relationships between the parties deteriorated to the extent that it became impossible for them to live under one roof.

During the proceeding in chambers it became apparent that amicable settlement was not possible between the two and both the parties agreed to divorce each other by mutual consent.

In view of the fact that both the parties have lived apart for fourteen years and have not been able to reconcile to live with each other, it is proper that the decree of divorce should be granted to them so that they can have a brighter future.

Today Sanjay Gupta and Manjusha Gupta are present in chambers along with their counsel and have prepared an application under section 13(B) of the Hindu Marriage Act. The parties agreed to the following terms :

- a) Sanjay Gupta would pay a sum of Rs. 5 lacs as one time settlement to Manjusha Gupta. In pursuance of the said one time settlement Rs.2 lacs have been paid which is apparent from the order, dated 22.3.2010. A draft bearing no. 011772, dated 21.6.2010 for a sum of Rs.3 lacs in favour of Manjusha Gupta has been produced today in court which is being handed over to Manjusha Gupta.

b) The petitioner will present the application under section 13(b) of the Act within a period of one week before the Principal Judge, Family Court, Patna.

c) Manjusha Gupta has agreed to withdraw the case filed by her for maintenance in the Family Court at Ara, that is, Misc. Case No. 144/1998.

At paragraph 16 of the consent divorce petition it is stated that she will withdraw the case within one month. It is expected that she would withdraw the case within the aforesaid time but in any event she has agreed not to press the case and the Family Court at Ara should not pass any order in this matter.

Manjusha Gupta will appear in the Family Court at Patna on the next appointed date. The Family Court, Patna will pass a decree of divorce incorporating the aforesaid facts within a period of two months. The statutory period of six months will be condoned in view of the fact that this court has already made efforts for amicable settlement of the matter between the parties.

The petitioner Sanjay Gupta will pay a sum of Rs.1000/- to Manjusha Gupta on her appearance before the Family Court as travelling expenses.

Considering all the facts this court quashes the entire proceeding arising out of Complaint Case No. 923© of 1997 pending before the Subdivisional Judicial Magistrate, Ara.

This application is allowed.

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(Sheema Ali Khan, J.)